



File No.: EXP202401977

RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint registered on December 23, 2023, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: A.A.A. (hereinafter, the complainant) exercised the right of Access against ENAIRE (hereinafter, the respondent) without receiving the legally established response to their request. The complainant states that, in May 2023, they applied for the access tests for air traffic controller positions called by the respondent. In this process, psychological and behavioral evaluations of the candidates were conducted by MANPOWER (the company awarded the aforementioned work). The complainant asserts that on June 16, 2023, they exercised the right of access before MANPOWER and that on June 10, 2023, the aforementioned entity responded that it had provided the respondent with all the documentation generated during the evaluations. The complainant declares that on July 11, 2023, they exercised the right of access before the respondent, attaching to their request the response received from MANPOWER. The respondent states that on July 13, 2023, it addressed the request, indicating in its response the personal data held in the databases. In the response issued, only the data provided upon registering for the job offer is included, with no mention made of the evaluation reports generated during the selection process. The complainant states that on July 13, 2023, they sent a new request to the respondent explicitly requesting access to the evaluation reports generated by MANPOWER in 2023, as well as those generated by CEGOS in 2022, for which they also applied. The complainant asserts that this request has not been answered.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

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THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the understanding that the complainant's claims were satisfied. Consequently, on March 14, 2024, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint for processing. The aforementioned agreement granted the respondent a hearing period, to present any arguments they deemed appropriate within ten working days. The respondent replied reinforcing its argument prior to the admission for processing, an argument that proved insufficient. In summary, it remains unproven by documentation that all requested information has been provided or that a motivated denial has been issued.

FOURTH: After examining the document submitted by the respondent, it is forwarded to the complainant for them to formulate any arguments they consider appropriate. The complainant continues to assert that the requested right of access has not been fully addressed.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and

Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure. Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, as long as they do not contradict them, by the general rules on administrative procedures in a subsidiary manner."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, among them, to enforce the Regulation and promote awareness among data controllers and processors regarding the...

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obligations that are incumbent upon them, as well as addressing the claims submitted by an interested party and investigating, in a timely manner, the reason for such claims.

Correspondingly, Article 31 of the GDPR establishes the obligation for controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In the case that they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

In accordance with this regulation, following the procedure provided in Article 65.4 of the LOPDGDD, prior to the admission for processing of the claim regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, the claim was forwarded to the respondent party for analysis, to respond to this Agency within one month, and to prove that they had provided the due response to the claimant.

The result of this forwarding did not allow for the understanding that the claims of the claimant party were satisfied. Consequently, on March 14, 2024, for the purposes provided in Article 64.1 and 65 of the LOPDGDD, the claim submitted was admitted for processing. This admission for processing determines the opening of the present procedure for failure to attend to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

"When the procedure refers exclusively to the failure to attend to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure will be six months from the date on which the admission agreement was notified to the claimant. After this period, the interested party may consider their claim accepted."

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers for the purpose of correcting any infringement of the GDPR, including "ordering the controller or processor to attend to the requests for the exercise of the rights of the interested party under this Regulation."

III

Rights of individuals regarding personal data protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

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Furthermore, consideration is given to what is expressed in Recitals 59 and following of the GDPR. In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and must state its reasons in case it does not intend to comply with such request. The burden of proof for compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right of Access

In accordance with Article 15 of the GDPR and Article 13 of the LOPDGDD, "the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data."

Regarding the right of access to personal data, according to Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the data controller may request the affected party to specify the "data or processing activities to which the request refers." The right will be deemed granted if the data controller provides remote access to the data, considering the request fulfilled (although the data subject may request information regarding the aspects provided in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a six-month period, unless there is a legitimate reason for doing so. On the other hand, the request will be considered excessive when the affected party chooses a means other than the one offered that incurs a disproportionate cost, which must be borne by the affected party.

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, and the information available about the source of the data (if these do not...

have been obtained directly from the holder), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data subject to processing will not negatively affect the rights and freedoms of others.

V

Conclusion

We will begin by stating that this claim will be resolved solely and exclusively regarding the requested right of access.

The rest of the issues raised by the parties, their relationship regarding the calls to obtain a position, as well as a possible breach of personal data concerning the dissemination of personal data without authorization, will not be evaluated or taken into account to resolve the present rights procedure, without prejudice to the exercise of the investigative powers conferred on the Spanish Agency for Data

Protection.

The claiming party requested the right of access, additionally specifying the desire to receive evaluation reports generated in the selection process.

The responding party addresses the request regarding the personal data held in the databases and adds that these are the data provided upon registering for the job offer, without making any mention of the evaluation reports generated in the selection process.

The claiming party states that it submits a new request to the responding party in which it explicitly asks for access to the evaluation reports generated by the company MANPOWER and by the company CEGOS, for which it also applied, and asserts that this request has not been addressed. Therefore, these reports generated by the aforementioned entities are part of the right of access and it must be demonstrated by the responding party that they have been addressed or denied with justification.

Upon analyzing all the documentation presented by both parties, we find that the responding party does not grant access to the aforementioned evaluation reports generated in the selection process, but only to the personal data held in ENAIRE's databases that were provided upon registering for the job offer.

For all these reasons, the right of access cannot be considered fulfilled, as the responding party must respond to the requested and unaddressed items and provide documentary evidence of this.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO GRANT the claim made by A.A.A. considering that the provisions of Article 15 of the GDPR have been infringed and to urge ENAIRE with NIF Q2822001J, to send to the claiming party, within ten working days following the notification of this resolution, a certification in which the requested right is addressed or denied with justification indicating the reasons why the request cannot be fulfilled, in accordance with the provisions established in the body of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could result in the commission of an infringement of art. 83.6 of the GDPR, classified as very serious for the purposes of prescription in article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with art. 58.2 of the GDPR.

SECOND: NOTIFY this resolution to A.A.A. and to ENAIRE.

In accordance with the provisions of article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with art. 48.6 of the LOPDGDD, and in accordance with the provisions of article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law.

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